

**PUBLIC RECORD OF RACKETEERING
BY SERHII NAHORNY (FATHER OF RESPONDENT)
AND IVAN OMELCHENKO IN UKRAINE (2015) -
REPEATING THE SAME PATTERN OF RACKETEERING
IN ATTACK ON PETITIONER (2022)**

Description: Public media reports and records from 2015 documenting racketeering activity by Serhii Nahorny (father of Respondent) and Ivan Omelchenko against their former business partner Serhii Rybalko in Ukraine. The reports describe the use of fabricated criminal charges, unlawful arrests, threats, extortion, and the involvement of law enforcement and judicial officials to facilitate the seizure of assets and hostile takeover of a business. This exhibit is offered to illustrate a pattern of racketeering under 18 U.S.C. § 1961 et seq. that is repeated in the targeted racketeering attack against Petitioner in 2022 - 2025 (including unlawful arrest in 2024, fabricated criminal case, unlawful seizure of assets and property, aggravated kidnapping of Petitioner's son Max Mars and removal of Max from Petitioner's custody using void orders issued by criminals from Santa Clara Mafia Cartel on positions of disqualified judges acting outside jurisdiction and corrupt police officers committing threats, theft and unlawful arrests)

Dates Range: 2015 - 2022

INTERNAL CHRONOLOGICAL INDEX

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**WIKIPEDIA ARTICLE ABOUT BUSINESS “SI GROUP” (“S.GROUP”) -
DOCUMENTING TARGETED RACKETEERING ATTACK
BY CRIMINAL SYNDICATE OF IVAN OMELCHENKO AND SERHII NAHORNYI
AGAINST THEIR BUSINESS PARTNER SERHII RYBALKO
RESULTING IN HOSTILE TAKEOVER OF BUSINESS**

Date: 2014

<https://marsjustice.io/federal-removal/si-group-racketeering-attack-wikipedia.pdf>

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[illegible]

S.Group

Unverified version (what to do?)

Material from Wikipedia, the free encyclopedia.

S.Group is a group of Ukrainian companies that produce food products and household goods. The group is one of the leading Ukrainian manufacturers of snack products (peanuts, pistachios, packaged sunflower and pumpkin seeds, potato and pita chips, extrusion), as well as a major exporter to the countries of Central Asia and the Middle East.

History

S.Group companies have been operating on the market since 1995 as part of SIGroup, founded by entrepreneurs Serhiy Rybalka and Ivan Omelchenko. However, after the division of SIGroup, the new structure entered the market on August 1, 2014. S.Group includes some of the production facilities, structural divisions, and trademarks of the "merged" company.

Structure

The group structure includes LLC "Prodexport-2009", LLC "Snek-Export" (<https://web.archive.org/web/20151213162605/http://sgroup.dp.ua/biznes-napravleniya/proizvodstvo-snekov/>), LLC "Clean Planet" (<https://web.archive.org/web/20151212182540/http://sgroup.dp.ua/biznes-napravleniya/celyulozno-bumazhnaya-produkciya/>), DP "YUMAK", LLC "Agrosakhinvest 2002", LLC "New Company 2006", LLC "Faeton-Trans" (<https://web.archive.org/web/20151222092504/http://sgroup.dp.ua/biznes-napravleniya/transportnye-perevozki-2/>) (logistics company). Production facilities are located in the city of Synelnykovo, Dnipropetrovsk region (key lines), the city of Dnipro (bread factory), the city of

S.Group



Type	group of companies
Branch	production of snacks, consumer goods and production of pulp and paper products
Founded	1995
Headquarters	 Ukraine, Dnipro
Key individuals	Chairman of the Board of Directors Rybalka Dmytro Viktorovich
Product	TM «SEMKI» (http://sgroup.dp.ua/brands-r/tm-semki-ru/), TM «Snekin» (http://sgroup.dp.ua/brands-r/tm-snekin-ru/), TM «Kozatska slava» (http://sgroup.dp.ua/brands-r/tm-kozatska-slava-ru/), TM «My Fisherman» (http://sgroup.dp.ua/brands-r/tm-my-rybalka-ru/), TM «Macho» (http://sgroup.dp.ua/brands-r/tm-macho-ru/), TM «KartoFan» (http://sgroup.dp.ua/brands-r/tm-kartofan-ru/), TM «Red Pistachio» (http://sgroup.dp.ua/brands-r/tm-red-ru/), TM «Lavka» (http://sgroup.dp.ua/brands-r/tm-lavka-ru/), TM «Fantasy» (http://sgroup.dp.ua/brands-r/tm-fantasy-ru/), TM «Fantee» (http://sgroup.dp.ua/brands-r/tm-fantee-ru/)
Employees	2 thousand people
Subsidiaries	LLC "Prodexport-2009", LLC "Snek-Export", LLC "Clean Planet", SE "YUMAK", LLC "Agrosakhinvest 2002", LLC "New Company 2006", LLC "Faeton-Trans"

Mena , Chernihiv region (chips). The company also has 3 export trade representative offices in Kazakhstan , Kyrgyzstan , Georgia .

sgroup.dp.ua (<http://sgroup.dp.ua/ua/>)

Export

Up to 30% of production in the snack segment and up to 15% in the household goods segment is exported . The company's products are supplied to Kazakhstan , Kyrgyzstan , Georgia , Moldova , Belarus , Tajikistan , Iran , Saudi Arabia , Morocco , Algeria , Mongolia , Uzbekistan , Latvia , Lithuania , Estonia , Israel , Bulgaria . The entire product range is exported to most countries.

Conflict with ATB

The cause of the corporate conflict between S.Group and ATB-Market was a family conflict between the founders of the two structures — Sergey Rybalko and his former father-in-law Gennady Butkevych (father of Rybalko's ex-wife Hanna Butkevych). In 2013 , with the assistance of Butkevych, the tax and police carried out numerous searches and stopped production at Rybalko's enterprises, which forced him to leave the country. Law enforcement agencies accused the company of tax evasion. After the Revolution of Dignity, the persecution stopped.

Currently, the parties are in a court economic dispute regarding the repayment by ATB of a debt of over UAH 110 million for the delivered goods. In turn, ATB accuses its opponents of creating an organized criminal group with the aim of seizing someone else's property. According to S.Group, in November 2015, the General Director of ATB-Market LLC, Dmytro Yevteyev, filed a corresponding application with the Prosecutor's Office of the Dnipropetrovsk Region . However, the application was accepted only by the Prosecutor General's Office .

In court, copies of documents are provided to confirm the absence of debt, which S.Group calls falsified. ATB does not provide the originals. The case is under consideration in the Kyiv Commercial Court of Appeal .

Retrieved from <https://uk.wikipedia.org/w/index.php?title=S.Group&oldid=39513858>

ITEM 2

AGRAVERY ARTICLE DOCUMENTING RACKETEERING ATTACK AND HOSTILE TAKEOVER OF BUSINESS FROM SERHII RYBALKO BY UKRAINIAN ORGANIZED CRIMINALS IVAN OMELCHENKO AND SERHII NAHORNYI (FATHER OF RESPONDENT)

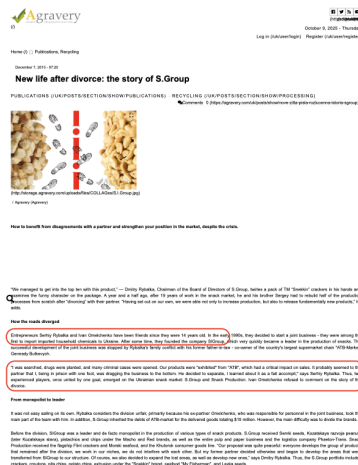
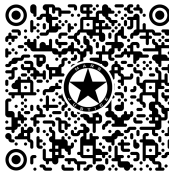
Description: Article published by Agravery detailing documented racketeering conduct targeting business co-founder Serhii Rybalko. The article describes the use of fabricated criminal charges, arrest and search warrants, and the involvement of law enforcement authorities to facilitate the seizure of assets and hostile takeover of the business. This exhibit is submitted to illustrate a pattern of racketeering activity under 18 U.S.C. § 1961 et seq. that is substantially similar to the pattern alleged in the present case.

Date: 2015

Full document:

<https://marsjustice.io/federal-removal/si-group-racketeering-attack-agravery-2015-12-07.pdf>

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December 7, 2015 - 07:20

New life after divorce: the story of S.Group

PUBLICATIONS (/UK/POSTS/SECTION/SHOW/PUBLICATIONS) - RECYCLING (/UK/POSTS/SECTION/SHOW/PROCESSING)

Comments 0 (https://agravery.com/uk/posts/show/nove-zitta-pisla-rozlucenna-istoria-s-group)



(http://storage.agravery.com/uploads/files/COLLAGEs/S.I.Group.jpg)

/ Agravery (Agravery)

How to benefit from disagreements with a partner and strengthen your position in the market, despite the crisis.

"We managed to get into the top ten with this product," — Dmitry Rybalka, Chairman of the Board of Directors of S.Group, twirls a pack of TM "Snekin" crackers in his hands and examines the funny character on the package. A year and a half ago, after 19 years of work in the snack market, he and his brother Sergey had to rebuild half of the production processes from scratch after "divorcing" with their partner. "Having set out on our own, we were able not only to increase production, but also to release fundamentally new products," he adds.

How the roads diverged

Entrepreneurs Serhiy Rybalka and Ivan Omelchenko have been friends since they were 14 years old. In the early 1990s, they decided to start a joint business - they were among the first to import household chemicals to Ukraine. After some time, they founded the company SiGroup, which very quickly became a leader in the production of snacks. The successful development of the joint business was stopped by Rybalka's family conflict with his former father-in-law - co-owner of the country's largest supermarket chain "ATB-Market" Gennady Bulkevych.

"I was searched, drugs were planted, and many criminal cases were opened. Our products were "exhibited" from "ATB", which had a critical impact on sales. It probably seemed to the partner that I, being in prison with one foot, was dragging the business to the bottom. He decided to separate, I learned about it as a fait accompli," says Serhiy Rybalka. Thus, two experienced players, once united by one goal, emerged on the Ukrainian snack market: S.Group and Snack Production. Ivan Omelchenko refused to comment on the story of the divorce.

From monopolist to leader

It was not easy sailing on its own. Rybalka considers the division unfair, primarily because his ex-partner Omelchenko, who was responsible for personnel in the joint business, took the main part of the team with him. In addition, S.Group inherited the debts of ATB-market for the delivered goods totaling \$15 million. However, the main difficulty was to divide the brands.

Before the division, SiGroup was a leader and de facto monopolist in the production of various types of snack products. S.Group received Semki seeds, Kozatskaya rozvoja peanuts (later Kozatskaya stava), pistachios and chips under the Macho and Red brands, as well as the entire pulp and paper business and the logistics company Phaeton-Trans. Snack Production received the flagship Flint crackers and Morski seafood, and the Khutorok consumer goods line. "Our proposal was quite peaceful: everyone develops the group of products that remained after the division, we work in our niches, we do not interfere with each other. But my former partner decided otherwise and began to develop the areas that were transferred from SiGroup to our structure. Of course, we also decided to expand the lost areas, as well as develop new ones," says Dmitry Rybalka. Thus, the S.Group portfolio includes crackers, croutons, pita chips, potato chips, extrusion under the "Snekin" brand, seafood "My Fisherman", and Lavka seeds.

ITEM 3

UKRAINIAN TAX AUTHORITY RECORDS CONFIRMING SERHII NAHORNY Y'S OFFICIAL POSITION IN SI GROUP TRANS

Description: Official records from the Ukrainian tax authority confirming that Serhii Nahorny served as the registered director of SI Group Trans, a department of SI Group, during the period when the company underwent significant changes in ownership and control. These records also reflect the official connection between Serhii Nahorny and Ivan Omelchenko in relation to the company. This exhibit is submitted to document the formal corporate positions held by the individuals during the relevant timeframe of targeted racketeering attack and hostile takeover of business.

Date: 2016

Full document:

<https://marsjustice.io/federal-removal/si-group-irs-record-nahorny-serhii.pdf>

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Full name		
Nagorny Serhiy Mykolayovych		
Director		
Company name	Type of activity	State
State Enterprise "KUMIB"	84.22 Defence activities	in a state of suspension
PE "COMFORT"	20.30.0 Manufacture of wooden structures and joinery	discontinued
LLC "S. I. GROUP TRANS"	52.29 Other support activities for transportation	discontinued
Director		
Owner		
Company name	Type of activity	State
PRIMED LLC	10.39 Other processing and preserving of fruits and vegetables	registered
LLC "NYD"	46.63 Wholesale of machinery and equipment for mining and construction	registered
LLC "ECOEXPORT"	10.39 Other processing and preserving of fruits and vegetables	registered
LLC "AGROPOINT SOLUTIONS"	46.75 Wholesale of chemical products	registered



Full name

Nagornyy Serhiy Mykolayovych

Director

Company name	Type of activity	State
<u>State Enterprise "KUMIB"</u>	<u>84.22 Defence activities</u>	in a state of suspension
<u>PE "COMFORT"</u>	20.30.0 Manufacture of wooden structures and joinery	discontinued
<u>LLC "S. I. GROUP TRANS"</u>	<u>52.29 Other support activities for transportation</u>	discontinued
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Owner

Company name	Type of activity	State
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<u>LLC "ECOEXPORT"</u>	<u>10.39 Other processing and preserving of fruits and vegetables</u>	registered
<u>LLC "AGROPOINT SOLUTIONS"</u>	<u>46.75 Wholesale of chemical products</u>	registered